

OBSERVATIONS BY LORD FINLAY ON THE QUESTION OF
COMPETENCY.

I CONCUR in the conclusions arrived at by the Court on both questions, but I desire to add some observations as to the reasons given for their opinion on the first question, that of competency.

The situation in the present case may well be and has indeed been expressed as follows:

In the case before the Court, the contention of the Polish Government that the Polish nationality of the persons concerned must be established before they constitute a minority within the meaning of the Minorities Treaty, may involve an interpretation of Article 4 of the Treaty and goes therefore to the merits of the main question. It will be observed that those who, upon a true construction of Article 4, fall within the Article, are Polish nationals *ipso facto* and without the requirements of any formality. As will be shown hereafter, the Court is of opinion that the persons referred to in the Council's request do fall within the Article. They are Polish nationals. They are not a future minority, as was contended by the representative of Poland, but an existing minority, and as such are clearly affected, within the meaning of Article 12, by the refusal of rights of citizenship; so that even assuming that the Polish contention of restricting minorities to Polish nationals was correct, the Court reaches the same conclusion as that which has already been stated regarding the competence of the League of Nations.

The present belongs to a large class of cases in which the decision on relevancy and the decision on the merits both depend on the finding to be arrived at on some one point of law or fact. The question of relevancy is in its nature preliminary, but if it depends on a point which is also decisive of the merits, both questions may most properly be considered together. In this case the one vital question was

whether Article 4 requires domicile of the parents on Polish territory at the time of birth only, or also at the time when the Treaty of Peace came into effect. The Court holds, and I agree, that domicile at the date of birth is all that is required by the Article. It follows that the Polish contention is wrong on the merits and also on the question of competency. As pointed out above, the persons became Polish nationals *ipso facto*, and the withholding of their rights as nationals was a wrong to them, as members of what may be called the German Minority in the aggregate of Polish nationals.

It is only in so far as the stipulations of the preceding Articles affect persons belonging to minorities of race, language, or religion, that they are placed under the guarantee of the League of Nations by Article 12 of the Treaty of Minorities.

Article 4 of that Treaty recognizes as *ressortissants polonais*, *ipso facto*, persons of German and certain other specified nationalities who are born on Polish territory of parents domiciled there, although such persons were not themselves domiciled there when the Treaty took effect.

It is admitted that there is a German minority in Poland. Does this Article affect persons of German race belonging to such a minority in Poland? Manifestly it does. It confers upon them, *ipso facto*, the status of Polish *ressortissants*, *de plein droit et sans aucune formalité*, if born of parents domiciled in Poland at the time of birth. It is apparent that Article 4 affects, and may have a very important effect upon the members of the German minority in Poland. It confers upon them Polish nationality in certain events, and to withhold the rights of Polish nationality when these events have occurred is an infraction of the Treaty to the prejudice of these persons.

A question has been raised : With regard to what body of persons as a whole is the existence of a minority for the purposes of Article 12 to be ascertained ? In my opinion it must in most cases be ascertained with a reference to the whole body of Polish *ressortissants* of which they form part.

On this point reference must first be made to Article 93 of the Treaty of Peace. That Article makes the following provision :

“Poland accepts and agrees to embody in a Treaty with the Principal Allied and Associated Powers such provisions as may be deemed necessary by the said Powers to protect the interests of inhabitants of Poland who differ from the majority of the population in race, language or religion.”

This pledge was carried out in the Minorities Treaty, which was signed on the same day as the Treaty of Peace, and it is on the terms of the Minorities Treaty that the question now before the Court must be decided. It is not to the purpose to observe that under Article 93 a treaty might have been framed in wider or in narrower terms. The question for the Court is defined by the Treaty of Minorities itself.

The Treaty of Minorities by its second Article provides that Poland engages to grant to all the inhabitants full and complete protection of life and liberty, without distinction of birth, nationality, language, race or religion.

This provision, it will be observed is in favour of all inhabitants of Poland, and it was natural that protection for life and liberty should be ensured to all inhabitants. But, on the other hand, in Articles 7, 8 and 9, which are those relevant to the present purpose, a different line is adopted. Article 7 provides that all *ressortissants polonais* shall be equal before the law and enjoy the same civil and political rights, without distinction of race, language or religion. In Article 8 it is provided that *ressortissants polonais* belonging to racial, religious or linguistic minorities, shall enjoy the same treat-

ment and equality in law and in fact as other Polish nationals.

The matter is even clearer upon Article 9. That Article lays down that in towns and districts in which a considerable proportion of Polish nationals of other than Polish speech are resident, Poland will provide, in the public educational system, facilities for instruction being given to the children of such Polish nationals through the medium of their own language. The second paragraph of the same Article provides that in towns and districts where there is a considerable proportion of Polish nationals belonging to racial, religious or linguistic minorities, they should have a fair share of any funds provided by the State or by any public body for educational, religious or charitable purposes, and a provision is added that this Article shall apply to Polish citizens of German speech in that part only of Poland which was German territory on August 1st., 1914.

It therefore appears that while such elementary rights as those of life and liberty are secured to all inhabitants, there are a great many rights secured to Polish *ressortissants* only, and it is with regard to such rights that the question of unfair treatment of minorities must arise in the immense majority of cases. Of course, it is conceivable that there might be a case in which protection for life and liberty was refused to some unpopular minority of inhabitants. In that case the minority would be one of a mass of inhabitants, whether Polish nationals or not ; but such cases must be rare. The point will arise in the immense majority of cases with regard to such Articles as 7, 8 and 9 and the rights which they confer on all Polish *ressortissants* including German or other minorities.

The district within which the whole body for the purpose of finding a minority must be taken may vary a good deal. For some purposes it would be necessary to take the whole

of Poland. In cases of local administration it may be a district more or less extensive. But, for the purposes of the present case, it would make no difference with regard to our definition of such minorities what is the area to be selected in this particular instance. Whatever area might be selected in the part of Poland with which we are concerned, there would be in it a minority of German race and language, in contradistinction to the other Polish *ressortissants* of Polish race or to the other inhabitants.

The objection raised that persons fulfilling the conditions of Article 4 are only candidates for Polish nationality, but do not become Polish nationals until they have been recognized as such by the Polish Government, does not bear examination. By the express words of Article 4, they are *ipso facto* Polish nationals. If Polish law requires registration or any other formality for the effective exercise of their rights as Polish citizens, the Polish Government is bound to provide for this ; and most certainly the Polish Government could not set up any wrongful refusal of theirs as justifying their contention that these persons are not Polish citizens.

I should have desired that the Court should not merely have based its answer to the Polish contention as to competency on the view that the minority contemplated by Article 12 may be one of inhabitants simply, but that it should also have pointed out that, for the reasons stated above, the Polish case fails even if the minority were to be taken on the basis of *ressortissants*. But I am glad to think that any points on which I differ from the Court are mainly academic and that in the present case the same result would follow upon either view.

(Signed) FINLAY.